

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: 157142/2022

Date Purchased: 08/22/2022

MELANIE SCAROLA,

SUMMONS

Plaintiff,

Plaintiff designates New
York County as the place of
trial.

-
against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN L.
ANGER (SHIELD #19136/TAX ID 3965930), POLICE
OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT
DANIEL P. BURKE (TAX ID #937899) and POLICE
OFFICERS JOHN DOE #1-2, (the names "John Doe" being
fictitious as the true names are presently unknown), individually
and in their official capacity as New York City Police Officers,

The basis of venue is:
Place of Occurrence

Defendants.

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To the above named Defendant(s):

You are hereby summoned to answer the amended verified complaint in this action, and to serve a copy of your answer, or, if the amended verified complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the amended complaint.

Dated: New York, New York
May 18, 2023



Ellie A. Silverman, Esq.

THE LAW OFFICE OF ELLIE SILVERMAN, PC

Attorneys for Plaintiff

MELANIE SCAROLA

745 5th Avenue, Suite 500

New York, New York 10151

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930)**, NYPD 18th Precinct, 2320 306 W. 54th Street, New York, NY 10019;
3. **POLICE OFFICER ADAM D. CHAN (TAX ID #967449)**, NYPD 18th Precinct, 2320 306 W. 54th Street, New York, NY 10019;
4. **SERGEANT DANIEL P. BURKE (TAX ID #937899)**, NYPD 18th Precinct, 2320 306 W. 54th Street, New York, NY 10019.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MELANIE SCAROLA,

Plaintiff,

-
against-

Index No.: 157142/2022

Date Purchased: 08/22/2022

**AMENDED VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

Defendants.

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Plaintiff **MELANIE SCAROLA** by her attorneys **THE LAW OFFICE OF ELLIE SILVERMAN, P.C.** complaining of the Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **MELANIE SCAROLA** was, and still is, an individual residing at 400 West 43rd Street, Apartment 36C, City of New York, County of New York and State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks

incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by NEW YORK CITY POLICE DEPARTMENT.

4. Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as an officers, agents, servants, and employees of Defendant **THE CITY OF NEW YORK** were acting for, and on behalf of, and with the power and authority vested in them by Defendant **THE CITY OF NEW YORK** and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
6. On October 29, 2021, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. Pursuant to General Municipal Law § 50(h), a hearing was held on January 18, 2022 at the office

of a designated agent.

8. Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** are sued in their official and individual capacities.

STATEMENT OF FACTS

9. Plaintiff **MELANIE SCAROLA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
10. On or about August 2, 2021 at approximately 3:15 P.M., Plaintiff **MELANIE SCAROLA** was lawfully present on the premises known as Radio City Music Hall, located at 1260 6th Avenue, in the County of New York, City of New York and State of New York when she became the victim of police brutality, police retaliation and/or police misconduct.
11. Plaintiff **MELANIE SCAROLA** was retaliated against, assaulted, violated, yelled at, falsely arrested, falsely imprisoned, deprived of her liberty, maliciously prosecuted and became a victim of malicious and sadistic force.
12. At the time and place of occurrence, Plaintiff **MELANIE SCAROLA** was lawfully present at the aforementioned location.
13. Upon information and belief, while at the aforementioned location, Plaintiff lawfully conversed with Lady Gaga and offered her script which was accepted by Lady Gaga.
14. Upon information and belief, after the conversation with Lady Gaga, when Plaintiff tried to enter the elevator and leave the aforementioned premises, she was approached by a tall plain clothed Caucasian man who prevented her from leaving the building without any justification to do so.
15. Upon information and belief, Plaintiff **MELANIE SCAROLA** was escorted into a small

room without any explanation and was locked in there against her will for approximately two (2) hours.

16. Upon information and belief, at some point a security guard entered the room and demanded from Plaintiff her identification, which she provided to him.
17. Upon information and belief, the aforementioned security guard proceeded to take a photograph of Plaintiff without her permission.
18. Upon information and belief, after approximately two (2) hours Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930) and POLICE OFFICER ADAM D. CHAN (TAX ID #967449)** entered the room and without warning or provocation, arrested Plaintiff **MELANIE SCAROLA**.
19. Upon information and belief, at no point did Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930) and POLICE OFFICER ADAM D. CHAN (TAX ID #967449)** attempt any investigation or de-escalation tactics, did not ask any questions or even try to obtain a statement from Plaintiff **MELANIE SCAROLA** to understand her side of the story.
20. There was an overwhelming amount of obvious proof that established that this complaint was unreliable. Even contained in Defendant **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930)** sworn affidavit, he states explicitly that there is an entrance that is accessible by the public in the building. Therefore, the officers had this information in their possession at the time leading up to the arrest of Plaintiff.
21. Upon information and belief, Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930) and POLICE OFFICER ADAM D. CHAN (TAX ID #967449)** brutally handcuffed Plaintiff **MELANIE SCAROLA's** and escorted her into a marked police

vehicle.

22. Plaintiff attempted to tell the police officers that she was not trespassing, that the door was unlocked and open to the public and that Lady Gaga accepted her script without incident. The officers ignored Ms. Scarola's attempt at her accounting of the story. Similarly in *Mohr v. City of New York*, the Court held that "[A]t the time of Mohr's arrest, he told the officers repeatedly that the substance they discovered on him was creatine and not a controlled substance. While officers are not required to investigate every protestation of innocence...this fact is still relevant." No. 12 Civ 00163 (LGS), 2013 WL 5988948 at *7 (SDNY 2013).
23. Upon information and belief, at no point did Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930)** and **POLICE OFFICER ADAM D. CHAN (TAX ID#967449)** read Plaintiff **MELANIE SCAROLA's** Miranda Rights.
24. Upon information and belief, Plaintiff **MELANIE SCAROLA** was then transported to the precinct where she was photographed, fingerprinted and/or otherwise processed.
25. Upon information and belief, while in the precinct, Plaintiff **MELANIE SCAROLA's** was handcuffed to the poll for hours.
26. Upon information and belief, after spending hours far in excess of what is appropriate or permitted in the precinct Plaintiff **MELANIE SCAROLA's** was finally released with the desk appearance ticket.
27. The arraignment was not timely held and then, after being forced to appear at several more court hearings and maliciously prosecuted, Plaintiff **MELANIE SCAROLA** remained unsure of her fate with a trial date of August 20, 2021.
28. On or about August 20, 2021, the A.D.A indicated that their witnesses (the officers) still had not provided the necessary information and on February 19, 2022, all charges against her were

dismissed and the case was sealed.

29. Said police misconduct violated the Civil Rights of Plaintiff **MELANIE SCAROLA**.
30. Upon information and belief, Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** prosecuted the Plaintiff without any sufficient information to show that the information supplied was in no way supportive of a finding of probable cause to continue proceedings against Plaintiff **MELANIE SCAROLA**.
31. There is no question that this ordeal has greatly affected her mentally, emotionally and psychologically. Additionally, and as a further result of this ordeal, which was instituted and maintained by Defendants, Plaintiff **MELANIE SCAROLA** has suffered substantial actual damages including and not limited to, legal fees and court costs, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE

UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983

BY THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2

32. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
33. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff and in failing to protect her from the unjustified and unconstitutional treatment she received at the hands of Defendants **THE CITY OF NEW YORK, POLICE OFFICER**

JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2 acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C.

§ 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

34. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DERELICTION OF DUTY, DELIBERATE INDIFFERENCE
and FAILURE TO INTERVENE BY DEFENDANTS THE CITY OF NEW YORK,
POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE
OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID
#937899) and POLICE OFFICERS JOHN DOE #1-2

35. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
36. Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.
37. Plaintiff duly relied on Defendants' fulfillment of their New York City Policing duties.
38. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.
39. At the time of the incidents, Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D.**

CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2 were observing and aware of the wrongful acts against Plaintiff.

40. At the time of the incident, Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** neglected to intervene on Plaintiff's behalf in dereliction of their duty to Plaintiff and in deliberate indifference to Plaintiff's well-being.
41. Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
42. Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by assault, abuse and punishments.
43. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL
HARM AND/OR DISTRESS

44. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
45. Courts have held that continuous and coercive harassment *can* establish an IIED cause of

action. *Alexander v. Unification Church of America*, 634 F.2d 673, 678–679 (2d Cir.1980) (filing of harassing lawsuits, constant surveillance, patrolling of plaintiffs' homes); *Green v. Fischbein Olivieri Rozenholc & Badillo*, 119 A.D.2d 345, 507 N.Y.S.2d 148 (1st Dep't 1986)(baseless eviction proceedings against plaintiff-tenant by landlord, disruption in services, deterioration of living conditions, interference with mails, verbal abuse of plaintiff and his guests). *But see, Gay v. Carlson*, 60 F.3d 83, 89 (2d Cir.1995) (finding plaintiff had not established an IIED claim where “[a]ll that plaintiff alleges that any of the defendants has done is lodge official complaints about plaintiff's conduct or discuss the basis of those complaints with others.”).

46. A timely Notice of Claim was filed with the City of New York.
47. Because many of these “last actionable acts” occurred within the statute of limitations period, the action is not time-barred. *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under general principles of New York law, the statute of limitations “ ‘runs from the commission of the last wrongful act.’ ”)(citations omitted).
48. The emotional harm and/or distress continue to present day. Hon. Denise L. Cote reached a similar conclusion on this issue. *Bonner v. Guccione*, 94 Civ. 7735, slip. op. at 7–15, 1996 WL 22355 (S.D.N.Y. January 17, 1996)(holding where last act of an uninterrupted course of actionable conduct falls within statute of limitations, plaintiff permitted to assert IIED claim for entire course of conduct, even those acts beyond the statute of limitations). *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under New York law where certain continuous wrongs are alleged, the last wrongful act triggers the statute of limitations).
49. Under the color of state law, Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** intentionally caused continuous emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional

distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon him throughout all stages of investigation, the continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.
51. As a result of the multiple acts, including but not limited to the acts briefly outlined, Plaintiff has suffered tremendously, experienced anxiety attacks, required regular therapy and has been emotionally distressed up to the present day.
52. Said police retaliation and false claims as outlined in the facts and below causes of action comprising this complaint has further contributed to Plaintiff's emotional harm and distress.
53. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.
54. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
55. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE

56. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
57. Upon information and belief, a Notice of Claim was timely filed against the City.
58. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
59. Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** negligently caused injuries and otherwise damaged Plaintiff. The acts and conduct of Defendant were the direct

and proximate cause of injury to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

61. Plaintiff **MELANIE SCAROLA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
62. By the actions described above, Defendant **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** caused Plaintiff to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
63. Upon information and belief, Plaintiff was not unlawfully trespassing aforementioned premises.
64. The entrance door, the stage door and all security guards that were present, permitted and welcomed Plaintiff into the establishment.
65. After being falsely stopped, humiliated and assaulted, Plaintiff was wrongfully confined from the moment she was prevented from leaving the Radio City Music Hall, all throughout her false imprisonment in the office of the Hall and throughout her time in the precinct up until the time of her release and thereafter until the moment all charges were dismissed six months after her ACD.
66. Defendants herein falsely arrested Plaintiff in order to justify their unlawful actions.

67. A timely Notice of Claim was filed on behalf of Plaintiff.
68. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
69. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING

70. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
71. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, supervised and trained Defendants **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** and its employees.
72. A timely Notice of Claim was filed by Plaintiff.
73. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

74. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
75. Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and

violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION

VIOLATION OF DUE PROCESS

(Violations of 42 USC § 1983, The Due Process Clause of the United States Constitution, the 14th Amendment, the New York State Constitution)

77. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
78. Defendants, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
79. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
80. Plaintiff was denied the minimal civilized measures of life's necessities.
81. Plaintiff was exposed to poor sanitation, infestation, inadequate nutrition, requests for medical attention, phone calls and use of bathroom facilities, and other unacceptable and inhumane scenarios while imprisoned at the hands of Defendants.
82. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of New York law, rules and regulations.
83. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION

MALICIOUS PROSECUTION UNDER THE

UNITED STATES CONSTITUTION and 42 U.S.C. § 1983

AND

**NEW YORK STATE CLAIM OF MALICIOUS
PROSECUTION**

84. Plaintiff **MELANIE SCAROLA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
85. Defendants' actions with regard to the institution and maintenance of the criminal prosecution were committed wantonly and with a reckless disregard for whether a reasonable ground of suspicion existed, supported by the circumstances, which would lead a reasonably prudent person to believe that Plaintiff had committed a crime.
86. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** initiated a prosecution against Plaintiff **MELANIE SCAROLA**.
87. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** caused Plaintiff to be maliciously prosecuted without any probable cause, without reasonable suspicion, without any proper claims, without any right or authority to do so, illegally and with malice.
88. Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process and intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of their misconduct.
89. Defendants acted with intent to do harm to Plaintiff without excuse or justification.

90. The legal process was terminated in favor of Plaintiff.
91. A timely Notice of Claim was filed with the City of New York as malicious prosecution was claimed in the Notice of Claim.
92. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2** lacked probable cause to believe the proceeding could succeed.
93. In fact, no probable cause existed to support a conviction and thus, actual malice by Defendants may additionally be inferred by the lack thereof.
94. It was clear that there was sufficient information to show that the information supplied by the complaining witness did not support a finding of probable cause. Namely, the officers themselves noted that the door was open to the public. “Probable cause is not established by witness testimony where the witness offers inconsistent accounts, which the defendants could have discovered with reasonable investigation.” *Manganiello v. City of New York*, 612 F3d 149, 161 (2d Cir 2010) (*see also Jovanovic v City of New York*, 2006 WL 2411541 (SDNY 2006)).
95. A reasonable officer would have performed a simple search, which easily could have identified that the true culprit was the complaining witness. These intervening facts were withheld leading to an inadequate work-up of the case.
96. The officers’ inquiry (or lack thereof) in this case was so lacking that it departed from what a reasonable officer would have undertaken as to itself constitute lack of probable cause.
97. The continuation of plaintiff’s prosecution was not similarly supported during her time at the precinct and prior to processing Plaintiff and subjecting her to an arraignment.

98. The charges were ultimately terminated in favor of Plaintiff on or about February 19, 2022.
99. As a result of the foregoing, Plaintiff **MELANIE SCAROLA** was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff **MELANIE SCAROLA** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action and Plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees; sanctions
- d. Such other and further relief as this court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
May 18, 2023

Yours, etc.



Ellie A. Silverman, Esq.
**THE LAW OFFICE OF ELLIE
SILVERMAN, PC**
Attorneys for Plaintiff
MELANIE SCAROLA
745 5th Avenue, Suite 500
New York, NY 10151

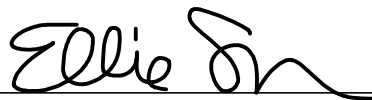
ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **THE LAW OFFICE OF ELLIE SILVERMAN, PC**, attorneys of record for Plaintiff **MELANIE SCAROLA**. I have read the annexed **SUMMONS AND AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
May 18, 2023



Ellie A. Silverman, Esq.

Index No.: 157142/2022

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

MELANIE SCAROLA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930), POLICE OFFICER ADAM D. CHAN (TAX ID #967449), SERGEANT DANIEL P. BURKE (TAX ID #937899) and POLICE OFFICERS JOHN DOE #1-2, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers

Defendants.

**SUMMONS AND AMENDED VERIFIED
COMPLAINT**

Ellie A. Silverman, Esq.
THE LAW OFFICE OF ELLIE SILVERMAN, PC
Attorneys for Plaintiff
MELANIE SCAROLA
745 5th Avenue, Suite 500
New York, NY 10151

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: May 18, 2023



Ellie A. Silverman, Esq.

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER JOHN L. ANGER (SHIELD #19136/TAX ID 3965930)**, NYPD 18th Precinct, 2320 306 W. 54th Street, New York, NY 10019;
3. **POLICE OFFICER ADAM D. CHAN (TAX ID #967449)**, NYPD 18th Precinct, 2320 306 W. 54th Street, New York, NY 10019;
4. **SERGEANT DANIEL P. BURKE (TAX ID #937899)**, NYPD 18th Precinct, 2320 306 W. 54th Street, New York, NY 10019.